

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING CHAPTERS 8.40, FOOD AND FOOD SERVICE ESTABLISHMENTS, WITHIN TITLE 8, HEALTH AND SAFETY, OF THE MUNICIPAL CODE OF THE CITY OF CHEYENNE, WYOMING, AND CHAPTERS 10.12, ADMINISTRATION AND ENFORCEMENT, 10.16, ARREST AND CITATION PROCEDURE, 10.52, STOPPING, STANDING AND PARKING GENERALLY, 10.60, PARKING LIMITATIONS, 10.64, LOADING AND UNLOADING, 10.68, CRITICAL TRAFFIC AND PARKING AREAS, WITHIN TITLE 10, VEHICLES AND TRAFFIC, OF THE MUNICIPAL CODE OF THE CITY OF CHEYENNE, WYOMING."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That one section of Chapter 8.40, Food and Food Service Establishments, of Title 8, Health and Safety, is hereby amended as set out in this Ordinance. Sections currently existing in Chapter 8.40 not set out within this ordinance remain unchanged.

8.40.110 – Food stands, pushcarts, mobile food trucks, and mobile food units – Restrictions – Operation.100

- H. Mobile food trucks or mobile food units may utilize parking places parallel to the public sidewalk to serve customers thereon **consistent with the signed time limitations.**
- I. **The City Traffic Engineer or their designee is hereby authorized to issue special purpose monthly on-street parking permits allowing mobile food trucks or mobile food units to utilize parking places parallel to the public sidewalk in the service of customers.**
 - a. **Such permit will allow the mobile food truck or mobile food unit to remain parked in a single parking place within downtown Cheyenne in excess of the signed two-hour limitation.**
 - b. **Applications for special purpose monthly on-street food truck parking permits shall be submitted with the police department parking administration manager.**
 - c. **Permits will be issued at a cost to the applicant of sixty dollars (\$60.00) per month.**
 - d. **Permits may be revoked by the police department parking administration manager for any reason.**

For purposes of this section, “downtown” shall mean the rectangular area within and including the following streets: 15th Street to 28th Street and House Avenue to Bent Avenue.

Section 2. That various sections of Chapter 10.12, Administration and Enforcement, of Title 10, Vehicles and Traffic, are hereby amended as set out in this Ordinance. Sections currently existing in Chapter 10.12 not set out within this ordinance remain unchanged.

10.12.160 – Authority to impound illegally parked vehicles.

- A. Any vehicle found parked in any unauthorized place or in violation of this code or any other city ordinance or any vehicle to which **was immobilized pursuant to Section 10.12.170(B)(3) and has not been released within three (3) business days** ~~has been attached or against which has been issued five or more tickets for illegal, improper or overtime parking, which tickets remain unpaid,~~ may be towed to any garage in the city. The owner of the vehicle shall pay all charges of towing and storage incurred in addition to any penalties impose for violation of this code or any other city ordinance.

10.12.170 – Immobilization Use of boots.

- A. Definition. For the purposes of this section, the word ~~"boot"~~ **“immobilize” or “immobilization”** means and includes **the use of** any device which may be attached or affixed to a vehicle and when so attached or affixed shall render the vehicle immovable.
- B. Scofflaw List. **As frequently as practicable, the police department parking administration manager shall prepare and update the “scofflaw list,” consisting of vehicles with three (3) overdue and unpaid parking citations.**
1. **There is hereby imposed upon the owner of every vehicle listed on the scofflaw list an additional fee as determined by the chief of police to cover administrative costs.**
 2. **Notice that a vehicle is listed on the scofflaw list shall be served in the following manner:**
 - a. **The police department parking administration manager shall give notice by first class mail to the registered owner of each vehicle listed on the scofflaw list, stating that the vehicle is listed on the scofflaw list.**
 3. **The content of the notice that a vehicle is listed on the scofflaw list shall contain not less than the following information:**
 - a. **The date and the nature of each ticket overdue and the amount due on each;**
 - b. **The date of entry of default judgement on each;**
 - c. **That a scofflaw list fee has been imposed to cover administrative costs;**

- d. The total amount currently due;
 - e. That the owner shall, no less than fifteen (15) days after the date of mailing, respond to the notice by paying the total amount due;
 - f. That if the vehicle owner fails to respond within the prescribed time period, the listed vehicle will be subject to immediate immobilization.
 - g. That an immobilization fee will be imposed upon every vehicle immobilized to cover costs of immobilization; and
 - h. That if the vehicle is impounded pursuant to Section 10.12.160, the owner will also be responsible for the costs of towing and storage.
4. A vehicle remaining on the scofflaw list after the date indicated in the notice issued pursuant to Section 10.12.170(B)(3)(f) is subject to be immobilized by the chief of police or his designee while that vehicle is located upon any public property. The person immobilizing the vehicle shall leave under the windshield wiper or otherwise attach to the vehicle a notice advising the owner that the vehicle has been immobilized by the City for failure to pay amounts due for three or more adjudicated parking infractions; that release from immobilization may be obtained by paying all outstanding fines and late fees owed relating to all adjudicated violations, plus all immobilization, removal, towing, and storage charges and administrative fees; that unless such payment is made within three business days of the date of the notice, the vehicle will be impounded; that it is unlawful for any person to remove or attempt to remove the immobilization device, to damage the immobilization device, or to move the vehicle with the immobilization device attached, unless authorized by the chief of police or an authorized agent of the City; and that the owner may seek an administrative review of the immobilization by submitting a request to the clerk of municipal court within ten days of the release of the immobilization device.
 5. If the owner or an agent of the owner pays the fines and fees, if any, and all immobilization, towing and storage charges, if any, the police department parking administration manager shall remove such vehicle from the scofflaw list and authorize its release from immobilization the next business day.
 6. If a vehicle immobilized pursuant to this Section is not released within three business days, (which does not include the day the vehicle was immobilized), the police chief shall require the vehicle to be removed or cause it to be removed and towed to any garage in the city in accordance with the impoundment provisions of Section 10.12.160 of this Title.

C.B. Authorized. When the city clerk and/or the police chief finds a vehicle parked in violation

of the provisions of this code, such person may attach or affix a boot to immobilize the vehicle or cause the same to be done if that vehicle appears on the scofflaw list. A fifty-dollar (\$50.00) fee will be imposed for each vehicle which has a boot attached and a five-dollar per day penalty will be assessed for each additional day the vehicle remains illegally parked.

- C. ~~Removal. Any boot attached or affixed to a vehicle pursuant to the provisions of this section shall remain so attached or affixed until the fine or penalty imposed for the violation of the section of this code pertaining to parking violations has been satisfied. Upon satisfaction, the city clerk and/or police chief shall issue an order authorizing the removal of the boot.~~
- D. ~~Alternate Procedure. The provisions of this section are declared to provide an alternative manner for the enforcement of the provisions of this code pertaining to parking violations and shall not preclude impoundment of the vehicle parked as authorized under Section 10.12.160 or any other method of enforcing the parking ordinances.~~
- E. ~~Penalty. Any person found guilty of tampering with an immobilization device boot in an attempt to remove or destroy it, is subject to the general penalty provision of this code under Section 1.24.010.~~
- F. **Post-immobilization review. The registered vehicle owner may seek a post-deprivation review of the immobilization by submitting a written request to the clerk of municipal court within ten days of the placement of the immobilization device and notice on the vehicle, as established by the notice date. A request for a post-deprivation review shall be made by posting a bond consisting of all outstanding fines and late fees owed relating to all adjudicated violations, plus all immobilization, removal, towing, and storage charges and administrative fees. Upon timely receipt of such written request and bond, the municipal court shall, within a reasonable time as established by the court, conduct a review on the issue of whether the immobilization was proper and shall issue a written decision setting forth the reasons on which the decision is based, provided, however, that any previously adjudicated parking infractions that formed the basis of the vehicle's scofflaw status shall not be subject to the review. The person seeking review shall have an opportunity to present evidence on his or her behalf in accordance with requirements established by the court.**

Section 3. That various sections of Chapter 10.16, Arrest and Citation Procedure, of Title 10, Vehicles and Traffic, are hereby amended as set out in this Ordinance. Sections currently existing in Chapter 10.16 not set out within this ordinance remain unchanged.

10.16.080 - Citation on illegally parked vehicles.

Whenever any motor vehicle without a driver is found parked, standing or stopped in violation of any of the restrictions imposed by ordinances of this city or by state law, the officer finding the vehicle shall take its registration number, vehicle identification number or any other

information displayed on the vehicle which may identify its owner, and shall conspicuously affix to the vehicle a **civil traffic citation**. A violation under this section, **Chapter(s) 10.52, 10.60 and Section(s) 10.08.010/W.S. § 31-5-512, 10.08.010/W.S. § 31-5-504(a)(iii)(A) and 10.64.020 shall constitute a civil traffic violation, subject to civil sanctions as provided herein.**

A. The citation will ~~shall~~ be on a form provided by the ~~city clerk~~ **chief of police** for the driver to answer to the charge against them within five days during the hours and at a place specified in the citation. **which shall include the following:**

- (1) **The date, time and location of the violation;**
- (2) **The state license number and/or vehicle identification number (VIN) of the vehicle unlawfully parked;**
- (3) **Reference to the municipal ordinance or code provision violated; and**
- (4) **A notice that:**
 - a. **Within fifteen (15) calendar days after the date that the citation is issued, the stated fine for a violation must be paid and received by the City;**
 - b. **A request made for a hearing to contest the alleged violation must be made and received by the Police Department Parking Administration Manager within fifteen (15) days after the date the citation was issued.**
 - c. **Failure to pay or request a hearing within fifteen (15) calendar days after the date that the citation was issued will result in the entry of a default judgment and assessment of a thirty-dollar (\$30.00) late fee.**
 - d. **Payment within two (2) business days after the date the citation is issued will cause the stated fine for a violation to be discounted by ten dollars (\$10.00).**

B. The citation, or copy thereof, shall constitute prima facie evidence of the parking infraction.

C. The City may contract with a private person or entity for the collection of civil judgments in parking cases. Any costs attendant to the collection of civil judgments in parking cases shall be levied against the violator.

10.16.090 - Failure to comply with civil parking citation on parked vehicle.

~~If a violator of the restrictions on stopping, standing or parking under the traffic laws or ordinances does not appear in response to a traffic citation affixed to a motor vehicle within five days, the city clerk shall send to the owner of the motor vehicle a notice informing him or her of the violation and warning that in the event the notice is disregarded for five days, the vehicle may be impounded, a boot attached or a warrant of arrest may be issued.~~

A. **If the fine indicated on the citation has not been paid within fifteen (15) days after the date of the issuance of the citation and the defendant has not requested a hearing, a default judgment shall be entered against the registered owner of the vehicle in the amount of the fine plus a late fee of thirty dollars (\$30.00). The date of payment for**

this Section shall be the date that payment is actually received by the police department parking administration manager.

- B. The police department parking administration manager shall send a mailed notice of the entry of a default judgment for the parking citation to the registered owner of the vehicle within five (5) business days of the entry of the default judgment. The police department parking administration manager's failure to provide such notice shall not render the City liable for immobilization, towing or impounding vehicles for outstanding and unpaid parking citations in accordance with the provisions of Section 10.12.160.

10.16.100 - Presumption in reference to illegal parking.

- A. In any ~~prosecution charging~~ **proceeding alleging** a violation of any law or regulation governing the standing or parking of a vehicle, proof that the particular vehicle described in the complaint was parked in violation of the law or regulation, together with proof that the defendant named in the complaint was at the time of parking the registered owner of the vehicle, shall constitute in evidence a prima facie presumption that the registered owner of the vehicle was the person who parked or placed the vehicle at the point where, and for the time during which, the violation occurred.
- B. The foregoing presumption applies only when the procedure as prescribed in Sections 10.16.140, 10.16.150, 10.16.080 and 10.16.090 has been followed.

10.16.140 – Request for hearing in parking cases.

The person or persons liable for the parking violation may request a hearing for consideration of the citation by contacting the Municipal Court in person, by telephone or mail within fifteen days after the date the citation was issued, posting the bond specified on the citation and court costs of ten dollars (\$10.00), and requesting a hearing to contest the alleged violation. A request for a hearing will be considered received by the City if it is actually received by the Municipal Court within fifteen (15) calendar days after the date the citation was issued. A request for a hearing made by telephone will be considered received the day it is made if it is received by a Municipal Court employee between the hours of 8:00 a.m. and 5:00 p.m. of any day, except on Saturday, Sunday or a City holiday.

10.16.150 – Parking violation hearings and appeal procedures

- A. Civil actions to enforce this chapter may be adjudicated by a municipal judge or a court hearing officer designated by the municipal judge.
- B. A hearing for a parking violation may be heard by the municipal judge or designee. The municipal judge or designee may make such orders as may be necessary and proper to dispose of such cases, including reduction or increase of fine amounts notwithstanding the schedule of fines set forth by the governing body and this section.

- C. Any defendant who has been issued a parking citation aggrieved by a decision in a parking violation hearing may seek judicial review in the manner provided by the Wyoming Administrative Procedure Act and the Wyoming Rules of Appellate Procedure.
- D. If a defendant, who has been issued a parking citation, fails to request a hearing within fifteen (15) days after the issuance of the citation, the allegations in the citation shall be deemed admitted and the police department parking administration manager shall enter judgment for the City and impose a civil sanction in the amount of the issued citation and any fine increases in accordance with Section 10.16.090(A).

10.16.160 – Operator error

No person receiving a civil citation under this section shall be found liable if they produce the following proof of operator error to the police department parking administration manager within fifteen (15) days of the receipt of the citation:

1. Proof of payment for their parking during the time the citation was issued.

Section 4. That various sections of Chapter 10.52, Stopping, Standing and Parking Generally, of Title 10, Vehicles and Traffic, are hereby amended as set out in this Ordinance. Sections currently existing in Chapter 10.52 not set out within this ordinance remain unchanged.

10.52.010 – Method of parking

- A. No person shall stand or park a vehicle in the roadway other than parallel with the edge of the roadway, headed in the direction of lawful traffic movement, and with the wheels of the vehicle nearest the curblane on the roadway but within twelve (12) inches of the curb or edge of the roadway, except two – or three-wheeled motor vehicles which may park at an angle to the curb and abutting the curb, provided they do not obstruct traffic movement and except as otherwise provided in this title.
- B. No person shall be permitted to back a motor vehicle into a diagonal parking space within city limits.

10.52.020 – Prohibited in specified places.

A. Stop, stand or park a vehicle:

1. Which is a tractor unit with ten (10) or more wheels and a fifth wheel, with or without a semi-trailer, upon any street or alley in the city, except when such vehicles are in the process of loading or unloading at the site of origin or delivery of shipments; recreational campers and vans may park for the time limits posted.

Any person found guilty of violating any of the provisions of this chapter may be punished in accordance with the ~~general penalty~~ **applicable** provisions of **Chapter 10.16** of the Cheyenne City Code.

10.52.120 — Diagonal parking permits.

- A. ~~The governing body may, upon motion duly passed, approve the issuance of diagonal parking permits according to the discretion of the governing body. Permits will be valid for one year and may be renewed annually.~~
- B. ~~The city traffic engineer shall forthwith promulgate, and from time to time amend, regulations for diagonal parking which shall be placed on file in the office of the city clerk for public inspection. These regulations shall define criteria for evaluating diagonal parking permits and shall contain reasonable diagonal parking design standards to provide for the safe and efficient operations of public streets and sidewalks.~~
- C. ~~Any property owner or group of property owners or any person or group of persons who occupy premises under a written lease for a term of at least one year, whose property or premises is located on a street in the city which, pursuant to the regulations, qualifies for diagonal parking may make application to the city clerk for a diagonal parking permit for spaces on that side of the portion of the street adjoining their property.~~
- D. ~~Each application shall be accompanied by an application fee in the sum of fifty dollars (\$50.00), and a sworn statement by the applicant or applicants that written notice of the application has been given to all property owners or tenants of premises on the street in question for a distance of one full block on either side of the applicant's premises. A list of the property owners or tenants referred to in this chapter, together with their addresses and a copy of the written notice, shall be included with the sworn statement.~~
- E. ~~Each application for diagonal parking shall be directed to the city traffic engineer, who shall make a recommendation of approval or disapproval to the governing body. In the event that the governing body disapproves an application, the application fee shall be returned to the applicant. In the event that the application is approved, the application fee shall be retained by the city and a diagonal parking permit shall be issued to the applicant by the city clerk.~~
- F. ~~Diagonal parking permits may be renewed annually upon approval by the governing body. Renewals will be considered once the holder of the permit has submitted written notice to the city clerk requesting the renewal. Each renewal shall be valid for one year and shall be accompanied by a renewal fee in the sum of fifty dollars (\$50.00).~~

10.52.230 – Downtown construction/maintenance worker parking.

- A. **The city traffic engineer or their designee is authorized to issue special purpose monthly on-street parking permits for bona fide downtown construction/maintenance**

work.

1. Such permit will allow construction/maintenance workers to park in a single parking place in excess of the signed two-hour limitation.
2. Applications for special purpose monthly on-street downtown construction worker parking permits shall be submitted with the police department parking administration manager.
3. Permits will be issued at a cost to the applicant of sixty dollars (\$60.00) per vehicle per month.
4. Permits may be revoked by the police department parking administration manager for any reason.
5. For purposes of this section, "downtown" shall mean the rectangular area within and including the following streets: 15th Street to 28th Street and House Avenue to Bent Avenue.

Section 5. That various sections of Chapter 10.60, Parking Limitations, of Title 10, Vehicles and Traffic, are hereby amended as set out in this Ordinance. Sections currently existing in Chapter 10.60 not set out within this ordinance remain unchanged.

10.60.010 – Signed time limitations.

Vehicles parked in an area where parking is limited by time must move ~~one hundred fifty (150) feet~~ from **the block face of** the vehicle's parked position before the expiration of time indicated on posted signs on any day except Sundays and public holidays, unless otherwise indicated upon any of the streets within the city as designated by the city traffic engineer. **Vehicles are prohibited from parking on a given block face for more than two (2) hours per day.**

"Block face" is defined as one side of a specific city block where signed time limited parking is available.

10.60.030 – Notice of violation.

When a vehicle is found to be in violation of this chapter a notice specifying the violation and amount of the fine will be affixed to the vehicle, or sent to the address indicated by current license plate registration records to the registered owner of the vehicle.

The notice of violation will also indicate the **manner in which the citation may be contested.** ~~time and place of court appearance. The violation(s) may be paid in the manner indicated on the notice in lieu of a court appearance.~~

10.60.040 - Fine schedule.

Any such fine imposed pursuant to a notice of violation issued under Section 10.60.030 shall be determined by **resolution of the governing body** ~~the municipal court~~, including any **administrative fee, early payment and** late fees, and shall be made available to the general public in the form of a fine schedule. **Court costs may be determined by the municipal court and additional administrative costs incurred by the police department may be determined by the chief of police.**

Section 6. That various sections of Chapter 10.64, Loading and Unloading, of Title 10, Vehicles and Traffic, are hereby amended as set out in this Ordinance. Sections currently existing in Chapter 10.64 not set out within this ordinance remain unchanged.

10.64.010 – City traffic engineer to designate curb loading zones.

- A. The city traffic engineer is authorized to determine the location of passenger and freight curb loading zones and shall place and maintain appropriate signs indicating the same and stating the hours during which the provisions of this section are applicable.
- B. The city traffic engineer shall not hereafter designate or sign any curb loading zone upon special request of any person unless such person makes application for a permit for such zone and for two signs to indicate the ends of each such zone. The **police department parking administration manager** ~~city clerk~~ upon issuing a permit and causing such signs to be issued shall collect from the applicant and deposit in the city treasury a service fee of two hundred fifty dollars (\$250.00) per year or fraction thereof per space, not to exceed twenty-four (24) feet in length, and for reimbursement of the city for the value thereof in the event of misuse or upon expiration of permit. The **police department parking administration manager** ~~city clerk~~ shall notify, by certified mail, any applicant whose curb loading permit has not been paid in full and/or when reimbursements to the city are required pursuant to this section. If the permit fee or reimbursement has not been paid within thirty (30) days after notification, the **police department parking administration manager** ~~city clerk~~ may revoke the curb loading zone permit and establish a parking place in the curb loading zone.

Section 7. That various sections of Chapter 10.68, Critical Traffic and Parking Areas, of Title 10, Vehicles and Traffic, are hereby amended as set out in this Ordinance. Sections currently existing in Chapter 10.68 not set out within this ordinance remain unchanged.

10.68.030 – Procedures for establishment.

Upon receipt of written application representing a majority of the dwelling units located within the proposed critical parking and traffic area, the establishment process will be initiated. The request will also indicate the area proposed and the restrictions suggested. The application shall be submitted to the **police department parking administration manager** ~~city clerk~~, who will then refer the request to the governing body and the city traffic engineer. The city traffic engineer will conduct a traffic and parking survey of the traffic and parking conditions in the area

proposed and involve other city departments and independent groups so that the survey addresses the entire concern. The city traffic engineer will then recommend either the granting or the denial of the designation or the designation with modification as to the area or proposed restrictions.

10.68.040 – Residential parking permits authority.

- B. An application for a permit shall be on a form or electronic method prepared by the **city traffic engineer or designee** ~~city clerk~~ and shall contain the name and address of the owner and/or occupant, make, model, and license number of the vehicle(s) and other such information as is reasonably necessary to enforce the provisions of this section. The application will be submitted to the **police department parking administration manager** ~~city clerk~~.
- F. Temporary parking permits for bona fide visitors shall be granted to the residents of the critical parking and traffic area. These temporary parking permits for visitors shall be granted in accordance with the intent of these regulations and according to rules promulgated by the city **traffic engineer and police department parking administration manager** ~~city clerk~~ and approved by the governing body, with the exception that no temporary parking permits shall be required for service vehicles or any commuter or nonresidential vehicles parked within a critical traffic and parking area for two hours or less.

10.68.080 – Downtown residential parking

- A. **The city traffic engineer or their designee is authorized to issue special purpose monthly on-street parking permits for bona fide downtown residents.**
 - 1. **Such permit will allow residents to park in a single parking place in excess of the signed two-hour limitation.**
 - 2. **Applications for special purpose monthly on-street downtown residential parking permits shall be submitted by the property owner to the police department parking administration manager.**
 - 3. **Permits will be issued at a cost to the applicant of sixty dollars (\$60.00) per vehicle per month.**
 - 4. **Permits may be revoked by the police department parking administration manager for any reason.**
 - 5. **For purposes of this section, “downtown” shall mean the rectangular area within and including the following streets: 15th Street to 28th Street and House Avenue to Bent Avenue.**

Section 8. This ordinance shall be in full force on March 1, 2020.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

Marian J. Orr, Mayor

(SEAL)

Attest:

Kristina F. Jones, City Clerk

Publish: Wyoming Tribune Eagle

CHEYENNE POLICE



Protecting the legend...

415 W. 18th Street • Cheyenne, WY 82001 • Phone (307) 637-6500 • Fax (307) 637-6558 • www.cheyennepd.org

TO: Honorable Mayor Orr and City Council

DATE: January 8, 2020

FROM: Brian N. Kozak, Chief of Police

SUBJECT: Staff Report to Adopt an Ordinance Amending Chapters 8.40, Food and Food Service Establishments, within Title 8, Health and Safety, of the Municipal Code of the City of Cheyenne, Wyoming, and Chapters 10.12, Administration and Enforcement, 10.16, Arrest and Citation Procedure, 10.52, Stopping, Standing and Parking Generally, 10.60, Parking Limitations, 10.64, Loading and Unloading, 10.68, Critical Traffic and Parking Areas, within Title 10, Vehicles and Traffic, of the City of Cheyenne Municipal Code.

RECOMMENDATION

Staff recommends that the City Council consider the proposed ordinance to amend Municipal Code provisions to update ordinances and definitions involving parking. The amendments are related to: food service parking, impound illegally parked vehicles, immobilization, illegally parked vehicles, failure to comply with parking citation, presumption in reference to illegal parking, request for hearing, operator error, prohibited in specified places, diagonal parking permits, downtown construction parking, signed time limitations, notice of violation, fine schedule, curb loading zones, procedures for establishment of critical parking area, and downtown residential parking. The ordinance intends to improve the management and effectiveness of the City of Cheyenne public parking. The complete ordinance amendment is attached to this staff report as Exhibit "A".

BACKGROUND

In the spring of 2016, the Cheyenne Metropolitan Planning Organization engaged Kimley-Horn and Associates to develop a Strategic Parking Management Plan for Downtown Cheyenne, Wyoming. On March 31, 2017, the Cheyenne Metropolitan Organization finalized their Downtown Strategic Parking Plan. The key findings of what the parking program needed:

1. A more comprehensive and strategic program action plan relative to parking and transportation policy.
2. Enhanced parking management expertise.
3. Establish parking as a separate "enterprise fund" and dedicate all parking related revenue streams to support the enterprise fund.
4. A strong customer service orientation.
5. While related to the enhancing parking management expertise and training/staff development, this focus area is about gaining an in-depth understanding of the many complex and challenging aspects that are somewhat unique to parking.
6. Investment in New Technology – Leveraging new technology will be a critical element in achieving many of the stated goals.

7. development of a strong parking maintenance program with regularly scheduled facility condition appraisals, the creation of parking facility maintenance reserves.
8. development of an on-going and collaborative relationships with the MPO, the State, the County and other local institutions.
9. Over time, expand the parking program's mission to adopt a broader more access management oriented perspective.

The complete MPO plan is attached to this staff report as Exhibit "B".

In March of 2018, Mayor Orr transferred the parking administration management to the Cheyenne Police Department. The Cheyenne Police Department was already involved in the establishment of an RFP to automate parking management and enforcement. The Cheyenne Police Department reviewed the MPO Plan and started assessing what actions needed to be accomplished. These ordinance amendments are products of this review, while assessing the needs of the Cheyenne Community.

In October of 2019, the Cheyenne Police Department activated the automated parking system. This not only included the parking structures but also on-street parking enforcement. Which is ahead of schedule.

ANALYSIS

The proposed changes will provide a more efficient and manageable parking program that will address chronic abuses and loopholes within the existing system. The ordinance amendments are intended to promote compliance with City parking ordinances and to improve the overall public parking experience. Existing codes rely on inefficient processes and the updates are intended to introduce customer conveniences and automation.

Some of the recommended changes will optimize compliance, monitoring and convenience. For example, Chapter 8.40, Food and Food Service Establishments, Chapter 10.52.230, Downtown construction/maintenance worker parking, Chapter 10.68.04, Residential parking permits authority and Chapter 10.68.080, Downtown residential parking. This special permit addition will allow businesses or individuals to park longer than the two-hour time limitation. These special permits are not required but allow business or individuals added convenience. This will also give the Traffic Engineer additional information about traffic flow and parking availability. They will know parking availability prior to issuing other permits or inconveniencing other businesses.

Changes to Chapter 10.60.010, Signed time limitation. The City of Cheyenne Ordinance will not allow shifting of parked vehicles. Therefore, vehicles will no longer be allowed to hopscotch within time limit zones. An individual will only be able to park on a block face once a day. This will encourage individuals working downtown to use the parking facilities and allow customers to park at businesses store fronts. The Cheyenne Police Department will utilize new license plate recognition (LPR) technology mounted on parking vehicles to monitor compliance with this regulation and ensure that parking space utilization adheres to the posted policy. The LPR technology will have the ability to monitor space occupancy within designated zones and, based upon the proposed amendment, vehicles will be required to move to a different block face. This is a change to move their vehicle 150 feet which confused the public.

Changes to Chapter 10.52.010, Method of parking, Chapter 10.52.120, Diagonal parking permits, and Chapter 10.52.020, Prohibited in specified places. The Cheyenne Police Department recommends these changes for safety reasons. A person backing into a diagonal parking space would cause the person to go against the flow of traffic and increase the risk of a crash. Also, the parking of a semi-tractor trailer downtown, other than loading or unloading, creating a low visibility zone.

Other proposed adaptations to the Municipal Code include an overall reorganization of Chapter 10.12.160, Authority to impound illegally parked vehicles, Chapter 10.12.170, Immobilization, Chapter 10.16.080, Citation on illegally parked vehicles, Chapter 10.16.090, Failure to comply with civil parking citation on parked vehicle, Chapter 10.16.140, Request for hearing in parking cases, Chapter 10.16.150, Parking violation hearings and appeal procedures, Chapter 10.60.030, Notice of violation, Chapter 10.60.040, Fine schedule and Chapter 10.16.160, Operator error. These changes explain the new procedures to clarify what constitutes a citation, what recourse citizens have to contest the citation, procedures to contest, and what are the procedures for individuals that refuse to pay their citations. The procedure to correct human or computer errors. These ordinance changes will provide some relief to the court as these citations will be civil in nature and not criminal. In the future, the Parking Administration Manager will be maintaining all parking citations and will be able to receive payments. The court will only need to interact with individuals that want to contest the citation. Another benefit, we will be able to send unpaid parking citations to collections. This will stimulate individuals into satisfying their obligations to the City of Cheyenne. Citizens will be afforded the opportunity to receive a ten-dollar discount for paying their citation within five days. We are creating an atmosphere that paying your obligations in a timely manner has its rewards. It should be noted that there are almost one-thousand unpaid parking tickets since the first of January. This trend is extremely disturbing and inequitable to the individuals that follow the law.

The final amendments to Chapter 10.64.010, City traffic engineer to designate curb loading zones and Chapter 10.68.030, Procedures for establishment. These changes are clerical changes to indicate the office that is now administering parking.

If the proposed amendments are approved by City Council, staff intends to develop a strategic information campaign that includes public notice, signage and messaging, coordinated outreach with the commercial businesses and a proactive warning campaign. Our city parking vehicles are now equipped with technology that allows for a warning notice to be issued in lieu of a parking citation. In coordination with this public outreach and education campaign, the advanced technology also provides verification if previous warning notices have been issued by location or violation. This can be an effective tool in sharing the information and educating those parking in the City of Cheyenne.

The proposed code changes are a comprehensive and foundational approach to improve the parking experience in the City of Cheyenne. The amended ordinance still provides City Council oversight and prepares the City for the future by providing the flexibility and options to adapt for a growing and evolving community.

LEGAL ANALYSIS

This ordinance adoption to amend the City of Cheyenne parking ordinances has been reviewed by the City Attorney's Office and approved as to form and language.

FISCAL IMPACTS

No funding is required for this ordinance.

Certain amendments will increase revenue, as there will be a recourse for the Cheyenne Police Department to encourage individuals unwilling to pay for their citations.

ATTACHMENTS

Exhibit A: Proposed Changes to Parking Ordinance

Exhibit B: Cheyenne MPO finalized Downtown Strategic Parking Plan

PREPARED BY

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